

The case has settled. The Case Management Conference is **continued** to July 9, 2026 at 8:30 a.m. in Department 16 as a dismissal review hearing. If a dismissal has been filed before that date, the hearing will be vacated.

3. 9:00 AM CASE NUMBER: C24-01961
CASE NAME: WILLIAM DEDMAN VS. BRIAN HOWARD
***CASE MANAGEMENT CONFERENCE TO FOLLOW-UP ON JUDGMENT POST JURY TRIAL**
FILED BY:
TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on the Motion for Judgment Notwithstanding the Verdict, Line 13. This hearing is vacated due to the May 5, 2026 filing by Defendant Nataliya Howard of a Motion to Disqualify Judge Reyes. No appearance is required.

4. 9:00 AM CASE NUMBER: C24-02810
CASE NAME: DOMINGA ELEANOR ULIBARRY JIMENEZ VS. TERRICE WARREN
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on the Motion for Sanctions, Line 15. Counsel are ordered to appear for the CMC either in person or remotely. If the Tentative Ruling for Line 6 is uncontested, this CMC is continued to September 4, 2026 at 8:30am.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00085
CASE NAME: LAURA BEGIN VS. SAN RAMON VALLEY FIRE PROTECTION DISTRICT
HEARING ON SUMMARY MOTION RE DEFENDANTS SAN RAMON VALLEY FIRE PROTECTION DISTRICT AND JOHN DUGGAN
FILED BY:
TENTATIVE RULING:

Continued by the Court, *sua sponte*, to June 3, 2026.

6. 9:00 AM CASE NUMBER: C23-01442
CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ
***HEARING ON MOTION IN RE: RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25 TENTATIVE RULING GRANTING ARCH INSURANCE COMPANY'S MOTION FOR LEAVE TO FILE A COMPLAINT IN INTERVENTION**
FILED BY:
TENTATIVE RULING:

Plaintiff's motion under CCP sections 473(b) and 1008 is **off calendar** based on Plaintiff's withdrawal

of the motion. The case has settled. A dismissal review hearing is set for **July 9, 2026 at 8:30 a.m. in Department 16**. If a dismissal has been filed before that date, the hearing will be vacated.

7. 9:00 AM CASE NUMBER: C23-01531
CASE NAME: STEVIE HAYES VS. BLUE APRON, LLC
***HEARING ON MOTION IN RE: FOR PRELIMINARY APPROVAL OF CLASS AND REPRESENTATIVE ACTION SETTLEMENT**
FILED BY: HAYES, STEVIE A.
TENTATIVE RULING:

Summary

Plaintiffs Stevie A. Hayes ("Plaintiff Hayes") and Cortez Mitchell ("Plaintiff Mitchell") (collectively "Plaintiffs") request that the Court grant preliminary approval of a class action settlement of wage and hour claims, including a claim under the California Private Attorneys General Act of 2004, codified at Labor Code §§ 2698, et seq. ("PAGA"), against Defendant Blue Apron, LLC ("Defendant") (collectively, Plaintiffs and Defendant are referred to as the "Parties"). This settlement is preliminarily approved, and this motion is **granted** as set forth herein. No appearance is required at the May 6, 2026 hearing.

Background and Settlement Terms

Pursuant to California Rules of Court 3.769 (d) and (e), Plaintiffs Stevie A. Hayes ("Plaintiff Hayes") and Cortez Mitchell ("Plaintiff Mitchell") (collectively "Plaintiffs") request that the Court grant preliminary approval of a class action settlement of wage and hour claims, including a claim under the California Private Attorneys General Act of 2004, codified at Labor Code §§ 2698, et seq. ("PAGA"), against Defendant Blue Apron, LLC ("Defendant") (collectively, Plaintiffs and Defendant are referred to as the "Parties").

On June 21, 2023, Plaintiff Hayes filed a putative class action on behalf of Defendant's non-exempt employees alleging the following causes of action: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to permit rest breaks; (5) failure to provide accurate itemized wage statements; (6) failure to pay all wages due upon separation of employment; (7) violation of Business and Professions Code § 17200, et seq.; for the preceding claims. Plaintiff Hayes' counsel provided written notice to the LWDA and Defendant regarding Defendant's alleged Labor Code violations, as required by Labor Code section 2699.3(a). Id. at Ex. 2. The LWDA did not respond to this notice, indicating it did not intend to investigate, thus allowing Plaintiff Hayes to bring a PAGA claim against Defendant. Id. at ¶ 3. On September 11, 2023, Plaintiff Hayes separately filed a representative action complaint against Defendant seeking to recover PAGA penalties for the same Labor Code violations, also in Contra Costa Superior Court, Case No. C23-02278 (the "Hayes PAGA Action"). Id. at ¶ 4.

On August 25, 2023, Plaintiff Mitchell filed a putative class action against Defendant in Contra Costa Superior Court, Case No. C23-02125 (the "Mitchell Class Action"). The Mitchell Class Action was